

no such tenancies or covenants (*c*), but a condition limiting the title to ten years in a case where the land was broken up into small lots, and the condition was inserted for the purpose of saving expense, was held by the Court of Appeal, overruling North, J., to be reasonable and proper under the special circumstances (*d*). And] trustees would, it is conceived, be justified in inserting a condition, now not uncommon, empowering the vendor, if unable, or unwilling, for *reasonable cause*, to remove the purchaser's objection, to cancel the contract. Such a condition may be depreciatory at the sale itself, and yet beneficial in its results (*e*).

[40. If trustees have agreed to sell property subject to conditions of such a nature that the sale could be impeached by the *cestuis que trust*, the Court will not, at the instance of the trustees, enforce the contract against the purchaser (*f*).

41. As a tenant for life selling under the powers of the Settled Land Act, 1882, is by sect. 53, in relation to the exercise of the power to have the duties and liabilities of a trustee, it is conceived * that the same rules [*437] with regard to depreciatory conditions apply to him as to any other trustee.]

42. **Selling in lots.** — There is no rule to prevent the trustees from selling in *lots*, should the auctioneer or other experienced person recommend it as the most advisable course (*a*), and this liberty is now given by express enactment as to trusts created since 28th August, 1860, where the settlement does not direct the contrary (*b*).

[43. **Cheque for deposit.** — A trustee or mortgagee is justified, on the sale of a property of large value, in allowing the custom of auctioneers to accept a cheque in lieu of cash for

[(*c*) *Dunn v. Flood*, 25 Ch. D. 629; 28 Ch. Div. 586.]

[(*d*) *Dunn v. Flood*, 28 Ch. Div. 586.]

(*e*) *Falkner v. Equitable Reversionary Society*, 4 Drew. 352.

[(*f*) *Dunn v. Flood*, 25 Ch. D. 629; 28 Ch. Div. 586.]

(*a*) See Co. Lit. 113a; *Ord v. Noel*,

5 Mad. 438; *Ex parte Lewis*, 1 Gl. & J. 69.

(*b*) 23 & 24 Vict. c. 145, s. 1. [Repealed by 45 & 46 Vict. c. 38, s. 64; a similar power having been previously given to trustees under instruments coming into operation after 31st December, 1881, by 44 & 45 Vict. c. 41, s. 35. As to the effect of the repealing clause, see p. 436, note (*a*).]